Summary: The Dialogue of Difference – Gender Perspectives on International Humanitarian Law

Helen Durham & Katie O'Byrne, *International Review of the Red Cross*, Vol. 92, No. 877, March 2010, pp. 31–52

In one paragraph. Building on a 2007 Stockholm expert meeting ("*This is not a meeting about women and war … this is about gender and IHL*"), the authors argue that a **gender perspective** is not only about women. It means questioning **social assumptions about masculinity and femininity** that shape how IHL is written and applied. They review feminist critiques of IHL, then examine two themes: (1) **women as combatants** (POW protections, sexualized interrogation, female perpetrators, attitudes to women killing, reintegration of ex-fighters, girl soldiers) and (2) **sexual violence**, especially the neglected issue of **sexual violence against men**. Their conclusion: rather than new treaties, IHL should be **re-read through a gender lens** – recognizing the real experiences of both women and men, and applying its rules to everyone, whatever their gender, both to protect and to regulate.

1. What does a "gender perspective" mean?

- **Sex v. gender**: sex = biological characteristics; gender = "the culturally expected behaviours of men and women based on roles, attitudes and values ascribed to them on the basis of their sex" (ICRC, 2004). Charlesworth: the "excess cultural baggage associated with biological sex".
- **Not reducible to women or rape**: Patricia Viseur Sellers warns against "reductionist" thinking that reduces gender to women, and gender strategy to sexual violence against women and girls.
- Whitworth: feminists use "gender" to **reject essentialized categories** of women and men; assumptions about appropriate masculine and feminine behaviour can be used to exclude, privilege, discipline or make policies seem "natural".
- The only treaty definition – **Art. 7(3) Rome Statute** ("the two sexes, male and female, within the context of society") – is, in the authors' view, **very limited**.
- Treating "men" and "women" as fixed categories (e.g. men as **violators**, women as **victims**) excludes people who do not fit and prevents a deeper analysis of needs in armed conflict.

2. Feminist critiques of IHL – and responses

The critique

- IHL is a system of **formal equality** expected to deliver **substantive** equality, although armed conflict affects men and women very differently.
- Critics (notably **Gardam and Jarvis**) argue IHL is **inherently discriminatory**: it centres the **male combatant** and treats women mainly as **victims** or as **mothers**. Of the **42 provisions** specifically about women in the GCs and APs, **almost half** concern expectant or nursing mothers.
- Sexual violence is framed in terms of **chastity and modesty**: GC IV, Art. 27 – women "shall be especially protected against any attack on their **honour**, in particular against rape…".
- Rape was historically rarely prosecuted and is **not listed as a grave breach**, implying a lower status among war crimes.

The responses

- The GCs must be read in the context of the **1940s**; "honour" is a complex code by which many men and women live, not just a value-laden term (Lindsey).

- The language has **evolved**: AP I, Art. 76 and AP II, Art. 4(2)(e) drop “honour” and speak of “outrages upon personal dignity”; the **Rome Statute** (Arts. 7(1)(g), 8(2)(b)(xxii), 8(2)(e)(vi)) criminalizes rape, sexual slavery, enforced prostitution, forced pregnancy, enforced sterilization and other sexual violence, **without focusing only on women**. Case law now confirms rape can be a **war crime, a crime against humanity and genocide**.
- IHL has **limited, pragmatic aims**: it does not regulate social structures before or after conflict, so it cannot deliver the deeper social analysis feminist theory asks for (Durham).
- **New treaties are risky**: reopening the basic texts could **weaken** existing protections (Bennoune). The trend has instead been **soft law**: UN Security Council Resolutions **1325** (2000), 1820 (2008), 1888, 1889 and 1894 (2009), and UN Secretary-General’s Bulletins on IHL (1999) and on sexual exploitation and abuse (2003).
- The authors’ approach: **not more law**, but reflection on **existing** IHL norms through a gender lens.

3. Women as combatants

The drafters of the GCs did foresee women in non-civilian roles. Women’s participation in combat has grown sharply: US women make up about 18% of air force officers; Canada (~17%) has no combat restrictions; Israel conscripts women (about one-third of soldiers); women formed a large share of guerrilla forces in **Nepal, Sri Lanka, Ethiopia and Eritrea**. Australia then excluded women from some combat roles.

Protection of women as combatants and POWs

- **Non-discrimination**: protections apply “without any adverse distinction founded on sex” (GC I Art. 12, GC II Art. 12, GC III Art. 16, GC IV Art. 27, AP I Art. 75, AP II Art. 4).
- GC III, **Art. 14**: women POWs must be treated “**as favourable as that granted to men**”; Art. 16: all POWs treated alike, taking into account rank and sex.
- **Specific protections**: separate dormitories and conveniences (Arts. 25, 29, 97, 108), labour suited to sex (Art. 49), punishments **no more severe** than for men (Art. 88).
- **Gap**: unlike female civilian internees (GC IV, Art. 97), female POWs have **no specific right to be searched only by a woman**.

Sexualized interrogation

- **Abu Ghraib** (2003–04), involving male and female US personnel such as Lynndie England, shows the “sexualization” of interrogation. Eisenstein calls it “gender depravity and chaos”; Whitworth calls it gender perspective “in the wrong hands”: interrogators deliberately **manipulated expectations of masculinity** to humiliate detainees (a “racist and heterosexist understanding of masculinity … that ‘gets’ gender”).
- The drafters probably never imagined men being humiliated by searches by female officers, but GC III Art. 14 (respect for “their person and their honour”) **clearly prohibits gender humiliation**.
- **Practical difficulties**: there may not be enough personnel of the right sex for searches, and providing separate quarters is hard because women are often a small minority of detainees. IHL must balance practical reality and humanity – the POW rules would benefit from a gender review.

Women perpetrators

- Women who break the stereotype by committing crimes are often typecast as “**not like men, not like women, but something else, like monsters**” (Hogg, on women in the Rwandan genocide).
- **Pauline Nyiramasuhuko**, the former Rwandan Minister for Family and Women’s Development, was tried at the ICTR for genocide and rape as a crime against humanity (allegedly urging the Interahamwe

to rape Tutsi women before killing them). Media and supporters fixated on her womanhood and motherhood. Miller warned she could be found guilty "because of her classification as a woman, rather than as a war criminal". *(Later development, not in the article: convicted in 2011 – the first woman convicted of genocide by an international tribunal.)*

- Sperling: seeing women as innately good and incapable of atrocity is itself **dehumanizing**. Nyiramasuhuko should be judged as a **human being**, not by her femininity.
- IHL requires **fair trial** safeguards for all (GC I Art. 49, GC II Art. 50, GC III Art. 129, GC IV Art. 146) and equality before the tribunal (ICTR Statute, Art. 20(1)) – punishment neither more nor less severe because of sex.

The combat role of women – social attitudes

- An Australian Army legal officer's account of realizing she **would kill a child** if she had to (on patrol in Baghdad) divides students between "offensive" and "equality discourse".
- Public debate focuses on women's physical capacity and on women being killed or injured. Peach exposes a deeper "**ethic of care**" ideology: women are seen as more peaceful and moral.
- So the real concern is not that women are "not good enough" to fight but that they are "**too good**" – the discomfort is less about **women being killed** than about **women killing**.

Post-conflict reintegration of female ex-fighters

- Social pressure often **intensifies** after the fighting. Barth's study of African female ex-fighters: many are "**socialized out**" of their communities – for refusing traditional roles, having broken family ties, failed marriages, being childless or disabled.
- Many joined to escape poverty and do not want to return. Even on the winning side, they are often **sidelined politically** in the governments they fought to establish – seen as somewhere between "**heroines**" and "**unclean women**".

Girl soldiers

- Their experiences are complex and overlooked. **Forced marriage, forced child-bearing and domestic slavery** are not clearly covered by AP I Art. 77(2) (no recruitment of under-15s to take a "**direct part in hostilities**") or the Optional Protocol to the CRC (Art. 1).
- UNICEF and the Coalition to Stop the Use of Child Soldiers (2003) argue for a **broad interpretation** covering all roles. Human rights and domestic child protection should be used alongside IHL. The **Lubanga** case at the ICC was expected to set precedent. *(Later development: Lubanga was convicted in 2012, but sexual violence was not charged; in **Ntaganda** (2019) the ICC convicted for rape and sexual slavery of child soldiers within his own group.)*
- Many of these issues lie beyond IHL (policy, DDR programmes), but they show that IHL **does not operate in a vacuum** as regards gender.

Non-discrimination

Gender humiliation of men or women is prohibited by both the general and specific wording of the GCs and APs (GC III, Art. 14). GC III, Art. 88 guards against harsher treatment of women who "disrupt" gender norms: "In no case may a woman prisoner of war be … sentenced to a punishment more severe … than a male member of the armed forces of the Detaining Power dealt with for a similar offence."

4. Sexual violence in armed conflict – a gendered perspective

Crimes involving sexual violence

- After long silence, rape and sexual crimes are now clearly recognized as **war crimes, crimes against humanity and genocide** (*Akayesu* 1998, *Delalic* 1998, *Furundzija* 1998, *Kunarac* 2001/2002, *Krstic*, *Semanza*, *Gacumbitsi*).
- Debate has shifted to **technical questions**: the definition of rape – the broad conceptual definition in **Akayesu** (ICTR) v. the more mechanical one in **Kunarac** (ICTY) – and the relevance of **consent** in coercive conflict situations.
- Evolution of the texts: GC IV Art. 27 ("honour") → AP II Art. 4(2)(e) ("outrages upon personal dignity … rape, enforced prostitution and any form of indecent assault") → Rome Statute (a wider list, gender-neutral).
- Prevention and redress of sexual violence against women must remain a **major priority** – but men too are victims and deserve equal recognition.

Sexual violence against men

- It has occurred in many conflicts (e.g. Bosnia, Croatia, Sri Lanka, DRC), including violence aimed at destroying **reproductive capacity**. Like Abu Ghraib, it is used to push the victim to the bottom of a gendered power structure – to **humiliate and "emasculate"** him, "**feminizing**" him.
- **Under-reported and rarely prosecuted** because of: lack of detection and misdiagnosis; no vocabulary for it; shame and fear ("*I'd never heard of a man being raped*"); inadequate legal and bureaucratic systems; almost no psycho-social services (Carpenter); and **criminalization of male–male sex** in some countries (in seven, then, punishable by death) deterring victims from reporting.

The absence of a gender-equal approach

- UN Security Council resolutions (1325, 1820, 1888, 1889, 1894) focus mainly on **women and girls**; no human rights instrument focuses on male victims (Stemple). Recognizing women was a feminist victory, but a gender perspective **rejects using gender to discriminate between classes of victims**.
- Protecting men and protecting women is **not a contest**. Stemple: male rape will only be curtailed when men are no longer seen as a "monolithic perpetrator class"; we should avoid setting up "villains against damsels in distress". Sivakumaran: recognizing male victims could dispel the idea of "women solely as victims and men only as perpetrators" and help the fight against sexual violence against women too.
- Progress: OCHA's 2008 review of research gaps; ICTY **Cesic** (2004) – forced fellatio between two brothers was charged and convicted as **rape** (a crime against humanity), whereas earlier cases (*Tadic*, *Delalic*) had charged it only as inhuman treatment. Better detection, reporting and support services are needed.
- The gender-neutral wording of AP II Art. 4(2)(e) and the Rome Statute (based on **dignity**, not on "women") shows how IHL can be applied more inclusively – through **policy and guidelines** rather than new treaties.

5. Conclusion

- Many other IHL rules deserve gender review – e.g. the bans on the death penalty for "**mothers having dependent infants**" (AP I Art. 76(3)) and "**mothers of young children**" (AP II Art. 6(4)): what about fathers who are the sole carers? Is the rule about biology (breastfeeding) or the child's well-being? The Stockholm meeting also flagged means and methods of warfare, fact-finding and the Responsibility to Protect.
- A gender perspective rests on **two principles**: (1) where women (and men) take part in war, their **experiences must be recognized as valid**, not excluded or reduced to stereotype; and (2) **IHL applies to all participants**, both protecting and regulating them, **regardless of gender**.

- Practical uptake: **gender advisers** at international criminal tribunals and the ICC; Sweden's "**Genderforce**" (implementing Resolution 1325).
- A gender perspective **advances gender justice** by rejecting sexist assumptions that often lie at the root of discrimination, sexual violence and torture.

Key takeaways

- **Gender ≠ women.** A gender perspective examines social constructions of **masculinity and femininity** and how they shape IHL – for men, women and those who do not fit the categories.
- **Feminist critique**: IHL treats women mainly as victims or mothers (about half of the 42 women-specific provisions concern motherhood) and frames rape as an attack on "honour" (GC IV Art. 27).
- **Response**: read the 1949 texts in context; later law (AP I Art. 76, AP II Art. 4(2)(e), Rome Statute) uses **dignity-based, gender-neutral** language. The authors prefer **reinterpretation and soft law** over new treaties, which could weaken protections.
- **Women combatants** are protected by formal equality and specific POW rules (GC III Arts. 14, 16, 25, 88, 97, 108), with gaps (e.g. no right for female POWs to be searched by a woman).
- Gender can be **weaponized**: Abu Ghraib shows deliberate manipulation of masculinity norms; GC III Art. 14 prohibits gender humiliation.
- **Stereotypes distort justice**: female perpetrators (Nyiramasuhuko) are cast as "monsters"; fair trial and equal punishment apply regardless of sex.
- Society is uncomfortable with **women killing**, not just women being killed; **female ex-fighters** and **girl soldiers** face exclusion and gaps in protection after conflict.
- Sexual violence is now firmly an **international crime**; open debates concern the **definition of rape** (*Akayesu* v. *Kunarac*) and **consent**.
- **Men are also victims** of sexual violence – under-reported, under-prosecuted, ignored by women-focused instruments. Recognizing them (e.g. *Cesic*) helps, not harms, the protection of women.
- Final principles: **recognize everyone's real experiences** and **apply IHL equally to all**, regardless of gender.

Why this article is relevant to this week's topic

Status of persons in armed conflict

- IHL assigns status (combatant, POW, civilian, internee, child) in **formally gender-neutral** terms, but the article shows how assumptions about gender shape who is *seen* as a combatant or a victim – women are presumed civilians and victims, men presumed fighters.
- It examines the **specific rules attached to status** for women: POW protections (GC III Arts. 14, 16, 25, 29, 49, 88, 97, 108), civilian internees (GC IV Art. 97 searches), mothers (AP I Art. 76; AP II Art. 6(4)) and children (AP I Art. 77) – useful for questions on the treatment of detained persons.
- It highlights gaps in the **status of girl soldiers** and the forms of exploitation (forced marriage, domestic and sexual slavery) that do not fit neatly into existing categories.
- It links status to **non-discrimination** as a cross-cutting rule ("without any adverse distinction founded on sex").

Direct participation in hostilities

- It documents women as **active participants** in hostilities – in regular armies and in guerrilla forces (Nepal, Sri Lanka, Eritrea) – challenging the stereotype that women are not fighters. Under the ICRC's DPH Guidance, women lose protection **exactly like men** when they take part.

- Read together with the **DPH Interpretive Guidance**: the functional tests (specific acts; continuous combat function) are gender-neutral, but the roles many women and girls play in armed groups (cooks, carers, “wives”, porters) are support roles that usually **do not count as DPH** – keeping them protected, but also making their participation invisible (e.g. in DDR).
- The girl soldier section shows that the treaty phrase “**direct part in hostilities**” (AP I Art. 77(2); CRC Optional Protocol Art. 1) may be **too narrow** to protect children exploited in non-combat roles – arguing for a broader reading in the child-recruitment context.
- It warns against stereotypes in **targeting and distinction**: presuming women are harmless or men are fighters both undermine the principle of distinction.

Gender and law

- It is a **foundational text** on gender and IHL: defining gender, setting out the feminist critique (Gardam and Jarvis, Charlesworth) and the responses, and the evolution from “honour” to “dignity”.
- It argues that gender is **about men too** – especially male victims of sexual violence – an important corrective to women-only approaches (e.g. the UN Women, Peace and Security agenda).
- It covers the **law on conflict-related sexual violence** (GC IV Art. 27, AP II Art. 4(2)(e), Rome Statute, *Akayesu*, *Kunarac*, *Cesic*) – central for exam questions on sexual violence as a war crime, crime against humanity or genocide.
- It raises the question of **method**: new treaties v. reinterpretation and soft law (Resolution 1325 and follow-ups), and the practical role of **gender advisers** in tribunals and armed forces.
- It remains relevant to current debates: the ICRC’s later work on gender in IHL, sexual violence against men in Syria, Ukraine and Libya, and the ICC’s gender policies.